



Instructions for Request for Certificate of Non-Existence

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form G-1566
OMB No. 1615-0156
Expires 03/31/2027

What Is the Purpose of Form G-1566?

The information provided in Form G-1566 is used to determine if the immigration records specified by the requestor exist for the subject of record listed on the form. A Certificate of Non-Existence certifies that U.S. Citizenship and Immigration Services (USCIS) did not find the type of records identified by the requestor in **Part 1. Certificate Request**, of the form. If USCIS finds the type of records specified by the requestor, a Certificate will not be issued, but the requestor will be provided a response.

NOTE: USCIS searches records in its custody and control when determining whether to issue a Certificate of Non-Existence. Certain records may have been transferred, including:

1. Records of naturalization prior to September 27, 1906. Consult Federal records stored at the National Archives and Records Administration (NARA) Record Group 21, at www.archives.gov/research/guide-fed-records/groups/021.html or contact the clerk of the court where the naturalization occurred; or
2. Sea, land, or air passenger manifest lists recording arrivals prior to December 1982. For these documents, contact National Archives and Records Administration (NARA) at www.archives.gov/research/immigration.

Who Should Use Form G-1566?

Individuals request Certificates of Non-Existence for various purposes, including for use in litigation as evidence as anticipated in 8 U.S.C. 1360(d).

You should use Form G-1566 if you are:

1. Requesting a Certificate of Non-Existence for a subject of record who is deceased;
2. Requesting a Certificate of Non-Existence for a subject of record who is deceased and who was born 100 years ago or more;
3. Requesting a Certificate of Non-Existence for a subject of record who is alive and consents to USCIS providing a response to the requestor;
4. The subject of record requesting a Certificate of Non-Existence for yourself; or
5. An individual who received a letter from USCIS Genealogy informing them to file for a Certificate of Non-Existence.

When Should Form G-1566 Not Be Used?

You should not use Form G-1566 to request:

1. A search of USCIS historical databases or to obtain copies of USCIS historical records. These requests must be submitted using Form G-1041, Genealogy Index Search Request (www.uscis.gov/g-1041), or Form G-1041A, Genealogy Records Request (www.uscis.gov/g-1041a). For more information about the USCIS Genealogy Program, visit <https://www.uscis.gov/records/genealogy>; or

2. Information related to immigration records, whether your own or someone else's with their permission, or agency policies, data, communications, and other records. This information must be requested from the Freedom of Information Act (FOIA) at <https://www.uscis.gov/records/request-records-through-the-freedom-of-information-act-or-privacy-act>.

NOTE: For any records not available through any other USCIS program, use Form G-639, Freedom of Information/Privacy Act Request, <https://www.uscis.gov/records/request-records-through-the-freedom-of-information-act-or-privacy-act>.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your request. USCIS will not accept a stamped or typewritten name in place of any signature on this request. If you are under 14 years of age, your parent or legal guardian may sign the request on your behalf. A legal guardian may also sign for a mentally incompetent person. If your request is not signed, or if the signature is not valid, we will reject your request. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your request, you must submit all evidence and supporting documents listed in the What Evidence Must You Submit section of these Instructions.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the request and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form G-1566

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this request, use the space provided in **Part 5. Additional Information** or attach a separate sheet of paper. Type or print the name of the subject of record and his/her Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, “Provide the name of your current spouse”), type or print “N/A,” unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, “How many children do you have” or “How many times have you departed the United States”), type or print “None,” unless otherwise direct.
4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

We recommend that you print or save a copy of your completed request for your records.

What Evidence Must You Submit?

If the subject of record for whom you are requesting a Certificate of Non-Existence was born less than 100 years ago and is deceased, an obituary, death certificate, or other proof of death is required. Proof of death is not required if the subject of record was born 100 years ago or more.

If the subject of record for whom you are requesting a Certificate of Non-Existence was a United States citizen who married a foreign national between the years of 1907-1922, a marriage certificate or proof of marriage is required.

Where to File?

Please see our website at www.uscis.gov/G-1566 for the most current information about where to file this request.

Processing Information

Requests for More Information. We may request that you provide more information or evidence to support your request. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Decision. The decision on Form G-1566 results in the issuance of a Certificate of Non-Existence if no records are found. If records are found, the requestor will be notified, and a Certificate of Non-Existence will not be issued.

USCIS Forms and Information

To ensure you are using the latest version of this request, visit www.uscis.gov.

DHS Privacy Notice

AUTHORITIES: The information requested on this form is collected under 8 U.S.C. section 1360 and further addressed in regulations at 8 CFR section 103.7(f).

PURPOSE: The primary purpose for providing the requested information is to assist USCIS in processing requests from individuals seeking to obtain a Certificate of Non-Existence (CNE) of USCIS records. Information gathered on the form will ensure USCIS can conduct accurate record searches to determine whether any immigration records exist about the subject of record.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information may prevent USCIS from locating and/or verifying the existence or non-existence of responsive USCIS records.

ROUTINE USES: DHS may share the information you provide on this form with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notice [DHS/USCIS/ICE/CBP-001 Alien File, Index, and National File Tracking System of Records, September 18, 2017, 82 FR 43556 and DHS/USCIS-007 – Benefit Information System, October 10, 2019, 84 FR 54622, which you can find at www.dhs.gov/privacy]. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 29 minutes per response, including the time for reviewing instructions, gathering the required documentation and information, completing the request, preparing statements, attaching necessary documentation, and submitting the request. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0156. **Do not mail your completed Form G-1566 to this address.**